

Exam Logistics, Civil Procedure

Fall 2026

This class will have a midterm exam and a final exam. The following are general logistics for both; more precise details about each exam will be circulated well in advance of each test. Both the midterm and the final will be administered through the Electronic Bluebook (EBB) software, and you should **make sure that EBB is downloaded, updated, and functional** prior to each exam.

A. Midterm Exam

The midterm will be on October 13, during our regular class time. It will cover the material on our syllabus through October 8.

The midterm will be closed note and closed book. The one exception to that rule is that I will provide you with a printed copy of the Federal Rules of Civil Procedure (FRCP) that we have covered up to that point. I will provide a copy of the FRCP packet well in advance of the midterm exam, so that you know exactly what materials you will have available to you.

For anything other than the text of the FRCP, you are responsible for memorizing and internalizing the procedural-law doctrines that we have learned and being prepared to apply those doctrines to answer questions on the midterm. As a result, it is worth beginning to memorize material sooner rather than later. Indeed, one of the primary goals of administering a closed-note/closed-book exam is to help you begin practicing the kinds of memorization and internalization of the law that you will need to prepare for the bar exam.

As for format, the midterm will consist of multiple-choice questions and one or two short answer or essay questions (with a word limit). The exact number and type of questions, and their relative percentage of the midterm grade, will be communicated in advance of the midterm. You will also have access to multiple practice midterm exams, including last year's midterm, so you will be able to familiarize yourself with the format.

B. Final Exam

The Law Center will provide a full schedule of final exams; ours will be a 4-hour exam during the exam period of December 2 to 12.

The final exam will be comprehensive for the semester, so you are responsible for the full semester's material. Like the midterm, the final will be closed book and closed note, with the sole exception, again, that I will provide a printed copy of the FRCP and certain relevant statutes. For anything other than the text of the FRCP itself in that packet—which is to say, for things such as cases that we study—you are responsible for memorizing the relevant law and internalizing it so that you can apply that law in answering questions on the exam. I will provide a copy of the FRCP packet well in advance of the exam, so that you know

exactly what materials you will have available to you, and what things you will have to know for yourself. Again, taking a closed-book/closed-note exam is intended to help you begin preparing for the kind of studying and exam-taking that you will encounter with the bar exam (and in various other classes at the Law Center that also administer closed exams).

In terms of format, the final exam will consist of some multiple-choice questions and a number of essay questions, likely with a word limit. The exact number and type of questions, and their relative value for the total exam grade, will be communicated well in advance of the exam.